

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Hanley	Team: Squad #1	CCRB Case #: 201800650	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 01/18/2018 10:30 AM	Location of Incident: West 8th Street and 5th Avenue	Precinct: 06	18 Mo. SOL 7/18/2019	EO SOL 7/18/2019	
Date/Time CV Reported Thu, 01/18/2018 2:34 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/24/2018 11:05 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jonathan Oliveras	13842	943628	006 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Brooke Bukowski	14717	950125	006 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Jonathan Oliveras	Discourtesy: PO Jonathan Oliveras spoke discourteously to § 87(2)(b)	[REDACTED]

Case Summary

On January 18, 2018, § 87(2)(b) filed this complaint to IAB via telephone. It was referred to the CCRB via IAB log#§ 87(2)(b) on January 24, 2018.

On January 18, 2018, at approximately 10:30 AM, on the corner of West 8th Street and 5th Avenue in Manhattan, PO Jonathan Oliveras of the 6th Precinct allegedly spoke discourteously to § 87(2)(b) (Allegation : Discourtesy, § 87(2)(g) § 87(2)(b) was issued a summons for § 87(2)(b). Video footage of the incident was obtained from a building surveillance camera at 2 5th Avenue, New York NY (Board Review 04, 05).

Findings and Recommendations

Allegation (A) Discourtesy: PO Jonathan Oliveras spoke discourteously to § 87(2)(b)

It is undisputed that on January 18, 2018, § 87(2)(b) was involved in an accident in which § 87(2)(b) a pedestrian, alleged that § 87(2)(b)'s taxi cab struck her foot at the intersection of 6th Avenue and West 8th Street in Manhattan. § 87(2)(b) and § 87(2)(b) both called 911 and PO Oliveras and his partner, PO Brooke Bukowski responded to the location along with EMS. § 87(2)(b) spoke to PO Oliveras while § 87(2)(b) spoke to PO Bukowski and EMS around the corner. EMTs, PO Bukowski, and § 87(2)(b) were not involved in § 87(2)(b)'s interaction with PO Oliveras. PO Oliveras issued § 87(2)(b) a summons for § 87(2)(b).

§ 87(2)(b) stated that he told PO Oliveras what happened and asked PO Oliveras to note in his accident report that § 87(2)(b) denied striking § 87(2)(b) with his taxi (Board Review 01). PO Oliveras stated, "I need to know what fucking happened," or "I need to know what the fuck happened." § 87(2)(b) could not recall exactly which phrase PO Oliveras used, although PO Oliveras used a derivative of the word "Fuck" twice. PO Oliveras took § 87(2)(b)'s identification and went back to his patrol car. After a few minutes, PO Oliveras returned to § 87(2)(b)'s taxi with PO Bukowski, handed him his license and registration and issued him the summons. There was no further interaction between PO Oliveras and § 87(2)(b).

PO Oliveras denied using profanity during his interaction with § 87(2)(b) (Board Review 02). PO Oliveras specifically denied stating "I need to know what the fuck happened" or "What fucking happened" or any other derivative of the word "Fuck" during his conversation with § 87(2)(b). PO Oliveras informed § 87(2)(b) that as § 87(2)(b) had been in the crosswalk, he (PO Oliveras) was required to give him a ticket for failure to yield to a pedestrian. § 87(2)(b) stated "This is fucking bullshit" and that he would file a CCRB complaint. PO Oliveras instructed § 87(2)(b) to get back into his taxi and wait there while he prepared the summons. PO Oliveras then issued § 87(2)(b) a summons and did not interact with him any further.

Video footage captures § 87(2)(b)'s interaction with PO Oliveras (Board Review 04, 05). However, as there is no audio of the interaction, the alleged profanity was not captured. Video footage confirms that no one was near § 87(2)(b) and PO Oliveras while they spoke.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 06).
- PO Jonathan Oliveras has been a member-of-service for 11 years and has been a subject in five CCRB complaints and 10 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- No notice of claim has been filed with the NYC Comptroller's office as of March 19, 2018 (Board Review 07).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 1

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date
Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date
Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date